

24STCV26606 24STCV26606

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-07

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Case Number: 24STCV26606 Hearing Date: August 7, 2026 Dept: 512

HEARING DATE: Fri.,

August 7, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Robinson,

et al. v. Fulse, et al. COMPL.

FILED: 10-11-24

CASE NUMBER: 24STCV26606 ANSWER FILED: 12-10-24

NOTICE: OK

PROCEEDINGS: MOTION

FOR LEAVE TO FILE A CROSS-COMPLAINT

MOVING PARTY: Defendants

Prescott Fulse, Precious Fulse, Gabrielle Fulse, and Hailey Fulse

RESP. PARTY: None

MOTION FOR LEAVE TO FILE A

CROSS-COMPLAINT

(CCP §§ 426.50, 428.10-428.80)

TENTATIVE RULING:

Defendants

Prescott Fulse, Precious Fulse, Gabrielle Fulse, and Hailey Fulse's unopposed

Motion for Leave to File Compulsory Cross-Complaint is GRANTED.

Defendants

are to file and serve the Cross-Complaint within 5 days of this order.

Moving parties ordered to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC,
rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a)
OK

[X]
16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of August 5, 2026 [] Late [X]
None

REPLY: None

filed as of August 5, 2026 [] Late [X]
None

ANALYSIS:

I.

Background

On October 11, 2024, Plaintiffs Sharon Robinson and Sharon Robinson as Trustee of the Living Trust of Sharon Robinson Trust ("Plaintiffs") filed the instant action against Defendants Prescott Fulse, individually and as Trustee of Sharon Robinson Living Trust; Precious Fulse, individually and as Co-Trustee of the Sharon Robinson Living Trust; Gabrielle Fulse; Hailey Fulse; and Gabrielle and Hailey Fulse as Successor Trustees of Sharon Robinson Living Trust ("Defendants") and Does 1-50, alleging Fraud, Negligent Misrepresentation, Conspiracy to Defraud, Breach of Trustee Fiduciary Duty, Cancellation & Rescission of All Instruments, Declaratory Relief/Quiet

Title, Elder Abuse, Usury, and Promissory Estoppel. (Compl., p. 1.) The underlying action involves Plaintiff receiving a \$50,000 loan from Prescott Fulse; Plaintiff adding Prescott Fulse to Plaintiff's trust for repayment of the loan; and Defendants' modification of the trust's terms without Plaintiff's knowledge or consent. (See Compl.) To repay Prescott Fulse, Plaintiff also sold real property. (See Compl.)

On December 10, 2024, Defendants filed an Answer.

On July 6, 2026, Defendants filed the instant Motion for Leave to File Compulsory Cross-Complaint (the "Motion").

No Opposition was filed.

II.

Legal Standard

Code of Civil Procedure section 428.50 provides:

(a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.

(b) Any other cross-complaint may be filed at any time before the court has set a date for trial.

(c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.

(Code Civ. Proc., § 428.50.)

A "party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause

at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.” (Code Civ. Proc., § 426.50, emphasis added.)

“The legislative mandate is clear. A policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith.” (Silver Organizations Ltd. v. Frank, (1990) 217 Cal.App.3d 94, 98-99 (Silver Organizations).) “ ‘Bad faith,’ is defined as “[t]he opposite of ‘good faith,’ ” generally implying or involving actual or constructive fraud, or a design to mislead or deceive another, or a neglect or refusal to fulfill some duty or some contractual obligation, not prompted by an honest mistake . . . , but by some interested or sinister motive[.] . . . not simply bad judgment or negligence, but rather . . . the conscious doing of a wrong because of dishonest purpose or moral obliquity; . . . it contemplates a state of mind affirmatively operating with furtive design or ill will. [Citation.]” [Citations.]’ [Citation.] ” (Id., at p. 100.)

A cross-complaint is compulsory if it is transactionally related to the subject matter of the complaint. (Code Civ. Proc., § 426.10.) “To be considered a compulsory cross-complaint, a related cause of action must have existed at the time of the service of [the] answer to [the] complaint.” (Crocker National Bank v. Emerald (1990) 221 Cal.App.3d 852, 864.) The late filing of a motion for leave to file a compulsory cross-complaint “absent some evidence of bad faith is insufficient evidence to support denial of the motion.” (Silver Organizations, supra, 217 Cal.App.3d at p. 101.) “Permission to file a permissive cross-complaint is solely within the trial court’s discretion.” (Crocker, supra, 221 Cal.App.3d at p. 864.)

III.

Discussion

Defendants seek leave of court to file a compulsory

Cross-Complaint to assert related causes of action against Plaintiff.

Defendants assert the Cross-Complaint was not filed when the Answer was filed because “former defense counsel, Cristina M. Saca, inadvertently failed to assert what Defendants now contend are compulsory claims. After Defendant's present counsel, Freddie V. Vega..., assumed responsibility for the litigation several months ago, he conducted a comprehensive review of the case file and discovered that the compulsory claims had not been pleaded. Counsel thereafter investigated the factual basis of those claims, prepared the Proposed Cross-Complaint, and promptly seeks leave of Court to file it.” (Motion, pp. 4, 6-9, Vega Decl., Exh. 1.)

The Court finds Defendants' proposed Cross-Complaint contains compulsory claims. (Motion, Exh. 1.) The Cross-Complaint's causes of action arise out of the same “transaction, occurrence, or series of transactions or occurrences” as the causes of action in Plaintiff's Complaint – specifically, Prescott Fulse's \$50,000 loan to Plaintiff, and Plaintiff's repayment of that loan. (Motion, Vega Decl., Exh. 1; Compl.; Code Civ. Pro., § 426.10; Crocker, *supra*, 221 Cal.App.3d at p. 864.)

As the Motion is unopposed, does not appear to be made in bad faith, and is based on defense counsel's inadvertence or mistake, Defendants' Motion is GRANTED. (See Code Civ. Proc., §§ 426.50, 428.50; Silver Organizations Ltd., *supra*, 217 Cal.App.3d at pp. 98-99; Crocker, *supra*, 221 Cal.App.3d at p. 864.)

IV.

Conclusion & Order

For

the foregoing reasons, Defendants Prescott Fulse, Precious Fulse, Gabrielle Fulse, and Hailey Fulse's unopposed Motion for Leave to File Compulsory Cross-Complaint is GRANTED.

Defendants

are to file and serve the Cross-Complaint within 5 days of this order.

Moving parties ordered to give notice.